

DETERMINATION TO SOLICIT FROM A SINGLE SOURCE

Pursuant to Federal Acquisition Regulation (FAR) 13.106-1(b)(1)(i), for purchases not exceeding the Simplified Acquisition Threshold (SAT) Contracting Officers may solicit from only one source if the circumstances of the contract action deem only one source is reasonably available (e.g., urgency, exclusive licensing agreements, brand name, or industrial mobilization).

Pursuant to FAR 13.106-1(b)(1)(ii), when a single source is identified to provide a portion of the purchase as a Brand-Name, the documentation in paragraph 3 must state that this determination is only for a portion of the requirement.

1. **Agency and Contracting Activity.** U.S. Department of the Interior, Bureau of Reclamation, Central California Area Office (CCAO) Folsom Dam.
2. **Name and Address of Single Source.** Tidal Marine Construction Inc., 2540 Wilbur Ave, Antioch, CA 94509-8523.
3. **Description of Supplies/Services and Estimated Cost.** Reclamation urgently requires services to remove wood debris obstructing the Temperature Control Device trash rack structures at Folsom Units 1 and 2, which is preventing the mid Panel E shutters on Unit 1 and the bottom Panel A shutters on Unit 2 from functioning correctly. A recent ROV inspection confirmed these obstructions on March 28, 2025, at significant depths, with the lake currently at elevation 451 feet. The removal of this debris is critical for the operation of the Temperature Control Shutters, which are essential for managing water temperatures to protect endangered fish species. With projected flood space reaching 70% and potential daily losses of 10,000 in hydropower value due to restricted water release operations, immediate action is necessary to prevent violations of the Endangered Species Act and ensure effective temperature management of the reservoir. Thus, sole sourcing for this procurement is justified to quickly engage the required services and mitigate further impacts on Folsom Reservoir's operations and environmental compliance. It is estimated that the total cost for the urgent diving service is in the amount of [REDACTED]
4. **Description of Circumstances, including why only one source is reasonably available.** IAW FAR 13.106-1(b)(1)(i), only one source will be solicited because of the urgency of this requirement. This action requires urgent diving service to remove wood debris that is obstructing the mid Panel E shutters on Unit 1 and bottom Panel A shutters on Unit 2 from seating in the required configuration. Tidal Marine Construction Inc. can meet our timeline of completing service within two days after award. Immediate action is critical; following recent storm events, the reservoir is expected to encroach approximately 70% into flood pool space within a week, requiring doubled water releases to manage inflow. Additionally, the inability to close the Temperature Control Shutters has restricted water releases through two of the three power-generating units, resulting in daily losses of 10,000 in hydropower value. If the shutters cannot operate, significant negative impacts on cold-water pool management and power production are anticipated. Therefore, Tidal Marine Construction Inc. is the only source reasonably available to meet this urgent requirement.

5. **Determination of Fair and Reasonable Price.** Price Reasonableness will be based on a combination of price analysis techniques: 13.106-3(a)(2) (ii) Comparison of the proposed price with prices found reasonable on previous purchases (vii) Any other reasonable basis.

The proposed prices for this procurement are considered fair and reasonable based on a comparison with previous government purchases. Specifically, the Bureau of Reclamation previously acquired diving services at Folsom Dam Unit 2 for trash rack inspection and debris removal under Purchase Order 140R2025P0013, totaling \$13,132.00. This prior contract involved a four-member diving team for an eight-hour day, with additional divers as required.

The government's estimate for the current procurement is [REDACTED]. Below is a breakdown of these estimated costs:

[illegible]

The price of this procurement is slightly higher than that of the previously awarded contract because, at the time of the previous award, the lake elevation was lower, and decompression suits and a dive barge were not required. Considering this comparison, the current price is deemed fair and reasonable.

6. **Description of Market Research.** The market research conducted involved evaluating available vendors capable of providing underwater debris removal services at Folsom Dam. This included a review of the previously awarded contract (140R2025P0013) and performance evaluations of contractors with relevant experience, particularly in underwater operations within dam environments. Given the urgent situation and in accordance with FAR 13.106-1(b)(1)(i), it was determined that Tidal Marine Construction Inc. is uniquely positioned for this task. They can meet the urgent timeline and possess specialized knowledge of the site conditions and challenges related to the wood debris obstructing the Temperature Control Device trash rack structures. The research concluded that while other vendors were identified, none could match the urgency and capability that Tidal Marine

Construction Inc. offers. As a result, Tidal Marine Construction Inc. is deemed the most suitable and capable vendor to efficiently address the urgent need for this project.

SIGNATURES

PREPARED BY CONTRACTING OFFICER (CO) (FAR 13.106-1(b)):(All Values):

CHELSEA
X TIKOTSKY

Digitally signed
by CHELSEA
TIKOTSKY
Date: 2025.04.03
09:24:27 -07'00'

Name: Chelsea M. Tikotsky
Date:
